

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. _____

☐ COMMITTEE AMENDMENT

(Date)

I move to amend House Bill No. 4294 on Page 1, Line 13 1/2, by inserting a new SECTION 1 and SECTION 2 to read as follows, renumbering subsequent sections, and amending the title to conform:

“SECTION 1. AMENDATORY Section 2, Chapter 332, O.S.L. 2025 (36 O.S. Supp.

2025, Section 5401), is amended to read as follows:

Section 5401. As used in this act:

1. "340B drug" means a drug that has been subject to any offer for reduced prices by a manufacturer pursuant to Section 256b of Title 42 of the United States Code and is purchased by a covered entity as defined in Section 256b(a)(4) of Title 42 of the United States Code;

2. "340B entity" means an entity participating or authorized to participate in the federal 340B drug discount program, as described in Section 256b of Title 42 of the United States Code, including its pharmacy, or any pharmacy contracted with the participating entity to dispense drugs purchased through the 340B drug discount program;

3. "340B program" means the federal 340B Drug Pricing Program established pursuant to 42 U.S.C., Section 256b;

4. "Charity care" means the unreimbursed cost to a hospital of providing, funding, or otherwise financially supporting health care services to:

a. a person classified by the hospital as financially or medically indigent, or

b. financially indigent patients through other nonprofit or public outpatient clinics,

hospitals, or health care organizations;

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5. "Financially indigent" means an uninsured or underinsured person who is accepted for care with no obligation or a discounted obligation to pay for the services rendered based on the hospital's financial criteria and procedure used to determine if a patient is eligible for charity care. The criteria and procedure shall include income levels and means testing indexed to the federal poverty guidelines. A hospital may determine that a person is financially or medically indigent under the hospital's eligibility system after health care services are provided;

6. "Medically indigent" means a person whose medical or hospital bills after payment by third party payors exceed a specified percentage of the patient's annual gross income as determined in accordance with the hospital's eligibility system, and who is financially unable to pay the remaining bill;

7. "Pharmacy" means a pharmacy licensed by the Oklahoma State Board of Pharmacy, except that patients who are provided pharmacy care shall be physically located in the state; and

4. 8. "Pharmacy benefits manager" means a person that performs pharmacy benefits management and any other person acting for such person under a contractual or employment relationship in the performance of pharmacy benefits management for a managed care company, nonprofit hospital, medical service organization, insurance company, third-party payor or a health program administered by a department of this state.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5406 of Title 36, unless there is created a duplication in numbering, reads as follows:

A. Before April 1 of each year, a 340B entity shall report the following information and transactions to the Insurance Department concerning the 340B entity's participation in or participation on behalf of the 340B entity in the federal 340B program for the previous calendar year. Such report shall include the following information:

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1. The name, service address, 340B program identification number, and designation of entity type, as specified in 42 U.S.C., Section 256b(a)(4) of the 340B entity;
2. The aggregate acquisition cost for all prescription drugs obtained under the 340B program and dispensed or administered to patients;
3. The aggregate payment amount received for all drugs obtained under the 340B program and dispensed or administered to patients;
4. The aggregate payment made to pharmacies under contract to dispense drugs obtained under the 340B program;
5. The number of claims for prescription drugs described in paragraph 3 of this subsection;
6. How the 340B entity uses any savings from participating in the 340B program, including the amount of savings used for the provision of charity care, community benefits, or a similar program of providing unreimbursed or subsidized health care;
7. The aggregate payments made to any other entity that is not a 340B entity and is not a contract pharmacy as described in paragraph 4 of this subsection for managing any aspect of the 340B entity's 340B program;
8. The aggregate payment made for any other administering expense for the 340B program;
9. The aggregate number of prescription drugs dispensed or administered to patients for which a payment was reported pursuant to paragraph 3 of this subsection;
10. The percentage of the 340B entity's claims that were for prescription drugs obtained under the 340B program;
11. The number and percentage of low-income patients of the 340B entity that were served by a sliding fee scale for a prescription drug dispensed or administered under the 430B program;
12. The 340B covered entity's total operating costs;
13. The 340B covered entity's total costs for charity care; and

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14. A copy of the 340B entity's financial assistance policy for the reporting year.

B. The information required to be reported pursuant to paragraphs 3,4, and 5 of subsection A of this section shall, to the extent feasible, be reported by payer type, including commercial, Medicaid, Medicare, or uninsured.

C. The data submitted in the reports required pursuant to subsection A of this section shall be confidential and shall not be available for public inspection.

D. Before November 15 of each year, the Department shall prepare a report that aggregates the data submitted pursuant to subsection A of this section and shall submit the report in an electronic format to the President Pro Tempore of the Senate, the Speaker of the House of Representatives, and the Governor, and post the report on the Department's website.

E. A 340B entity that fails to provide the information required pursuant to this section by the date required shall pay to the Department a fine of One Thousand Dollars (\$1,000.00) per day for which the information is past due."

Submitted by:

Senator McIntosh

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